

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
NOEL RUEMMELEY,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD DETECTIVE
EMMANUEL FERNANDEZ, Shield No. 4003 and NYPD
POLICE OFFICERS JOHN DOES NUMBERS ONE
THROUGH TEN,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Bronx
County as the place of trial.

To the above-named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
June 16, 2022

Yours, etc.

Cary London

Cary London, Esq.

Shulman-Hill, PLLC

Attorneys for Plaintiff

1 State Street Plaza

15th Floor

New York, New York 10004

(212) 221-1000

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
NYPD DETECTIVE EMMANUEL FERNANDEZ, Shield No. 4003, Patrol Borough
Manhattan North, 151 West 100th St, New York, NY 10025

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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NOEL RUEMMELEY,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD DETECTIVE
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INDEX NO.:VERIFIED COMPLAINT**JURY TRIAL DEMANDED**

Plaintiff NOEL RUEMMELEY, by his attorneys, Shulman-Hill, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On June 29, 2021, at approximately 10:30 p.m., Plaintiff Noel Ruemmeley, while lawfully in the vicinity of Eastburn Avenue and East 174 Street, County of Bronx, State of New York, was subjected to an unlawful arrest, detention, assault, battery and excessive use of force by defendant Police Officers. In doing so, defendant Police Officers injured Plaintiff, causing bruising to his upper arms and wrists. In addition, Plaintiff was subjected to approximately three (3) days in unlawful custody at the 44th Precinct and Bronx County Central Bookings, resulting in lasting emotional and economic injury. Plaintiff was deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802 and his constitutional, common law and statutory rights when Plaintiff was unlawfully stopped, detained, assaulted, battered, denied the right to a fair trial, subjected to excessive force, and subjected to intentionally and negligently inflicted emotional distress by the defendants; they failed to intervene, negligently hired and retained officers, passed along false accusations to prosecuting attorneys, and engaged in the malicious prosecution of Plaintiff, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Noel Ruemmeley is a resident of the state of New York.
3. NYPD Detective Emmanuel Fernandez, Shield No. 4003, is and was at all times relevant herein an Officer with the New York City Police Department.
4. NYPD Detective Emmanuel Fernandez, Shield No. 4003, is being sued in their individual and official capacity.
5. At all times relevant herein, NYPD Detective Emmanuel Fernandez, Shield No. 4003, was assigned to the 44th Police Precinct of the NYPD.
6. Currently NYPD Detective Emmanuel Fernandez, Shield No. 4003, is assigned to the Patrol Borough Manhattan North.
7. NYPD Police Officers John Does Numbers One through ten are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
8. NYPD Police Officers John Does Numbers One through ten are being sued in their individual and official capacities.
9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
11. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.
12. In accordance with New York State law and General Municipal Law Section 50, Plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on April 6, 2022.

13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.

14. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

15. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

16. On June 29, 2021, at approximately 10:30 p.m., Plaintiff was present in the vicinity of Eastburn Avenue and East 174 Street, County of Bronx, State of New York, when the defendant Police Officers unlawfully assaulted, arrested, and detained Plaintiff without legal justification.

17. Plaintiff was leaving a convenience store on the corner of Eastburn Avenue and East 174 Street to return to his fruit and vegetable stand immediately outside of the convenience store.

18. Several defendant Police Officers exited from nearby vehicles and aggressively approached Plaintiff.

19. Plaintiff, without warning or reason, was suddenly grabbed and restrained with his hands above his head by defendant Police Officers.

20. Defendant Police Officers surrounded and held Plaintiff in this position while they conducted a search of the surrounding area, to include Plaintiff's fruit and vegetable stand.

21. Defendant Police Officers conducted a search on Plaintiff's person, confiscating his wallet, mobile phone, ring, and approximately three hundred (300) dollars in cash.

22. Plaintiff's ring and wallet were returned, but his phone and his three hundred (300) dollars were not.

23. Plaintiff had to replace his phone, which cost four hundred (400) dollars.

24. No explanation was provided by Defendant Police Officers as to why Plaintiff's property was confiscated and not returned.

25. Defendant Police Officers told Plaintiff that his missing confiscated phone was not his property.

26. During the search of Plaintiff's person, defendant Police Officers made unnecessary and invasive contact with Plaintiff,

27. Defendant Officers grabbed Plaintiff's genital area repeatedly during the unlawful search.

28. During the search on Plaintiff's person, defendant Police Officers continuously rejected or outright ignored Plaintiff's pleas for information, instead ordering him to be silent.

29. The group of defendant Police Officers who had finished searching the surrounding area and fruit and vegetable stand then gathered in a circle to speak amongst themselves.

30. Defendant Police Officers approached and handcuffed Plaintiff, still refusing to provide Plaintiff with any justification for the searches or the arrest.

31. Plaintiff complained to defendant Police Officers that his handcuffs were too tight around his wrists.

32. Defendant Police Officers ignored Plaintiff's complaint and told him to wait.

33. During his arrest and subsequent detention, Plaintiff was subjected to excessive force by defendant Police Officers, causing bruising to his upper arms and wrists.

34. Defendant Police Officers placed Plaintiff in a vehicle and transported him to a holding area at the 44th Precinct.

35. While held at the 44th Precinct, Plaintiff had his handcuffs removed and was again subjected to a thorough search on his person.

36. Defendant Police Officers ordered Plaintiff to remove his sneakers, hat, and belt, which they patted down.

37. Plaintiff was processed by defendant Police Officers, who took his picture and fingerprints.

38. Defendant Police Officers still had not told Plaintiff what he was arrested for.

39. Plaintiff remained at the 44th Precinct for nearly two (2) days before being put back into handcuffs and transported to Central Booking.

40. While at Central Booking, Plaintiff again complained about his handcuffs being tight, and defendant Police Officers loosened them.

41. Defendant Police Officers continued the processing of Plaintiff and took additional pictures of him.

42. Plaintiff hired a private attorney for this case, resulting in an approximately ten thousand (10,000) dollar expense.

43. Plaintiff was held in custody for approximately two (2) days before being called before a judge.

44. Bail was set at ten thousand (10,000) dollars., which Plaintiff paid.

45. As of the time of his 50H hearing, approximately 9 months after the incident, Plaintiff has still not received a return of his ten thousand (10,000) dollar bail bond payment.

46. While Plaintiff was in custody, the defendant Police Officers provided the Bronx County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiff committed a crime.

47. Specifically, the defendant Police Officers falsely stated to the Bronx County District Attorney's Office that Plaintiff was in criminal possession of a loaded firearm, and in possession of drugs and narcotics with the intent to sell.

48. As a result of Plaintiff's arrest and detention, he lost his entire stock of vegetables and fruit at the time of arrest (valued at approximately one thousand five hundred (1500) dollars).

49. As a result of Plaintiff's arrest, detention, and open case, the convenience store discontinued their business relationship with Plaintiff, resulting in a loss of income of approximately five thousand (5000) dollars per month.

50. As a result of Plaintiff's arrest, detention, and open case, Plaintiff has had numerous employment applications rejected, and has not been able to find employment as of the time of his 50H hearing.

51. As a result of this incident and of the injury caused therein, Plaintiff has since suffered from depression and anxiety and is considering seeking counseling.

52. Plaintiff was forced to make approximately fifteen (15) more court appearances pertaining to these false charges, until his criminal case was dismissed and sealed on January 10, 2022.

53. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

54. At no point did Defendant Officers recover any narcotics or weapons from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

55. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause, unlawfully fingerprinted, photographed and searched, and unlawfully detained.

56. Some of the defendant Police Officers observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably assaulting, battering, and using excessive force against Plaintiff.

57. The unlawful assault, battery, arrest, detainment, and use of excessive force by the individually named defendants caused Plaintiff to sustain physical, psychological, and economic injuries.

FIRST CAUSE OF ACTION **Unlawful Stop, Question, and Search**

58. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

59. The illegal approach, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

60. The conduct of defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

61. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

62. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

63. The City, as the employer of the defendant Police Officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SECOND CAUSE OF ACTION **Violation of Fourth and Fourteenth Amendment Rights:** **Unlawful Seizure and Deprivation of Liberty**

64. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

65. The individually-named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

66. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

THIRD CAUSE OF ACTION

False Imprisonment

67. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

68. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

69. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

70. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

71. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

72. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights: Excessive Force

73. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

74. The use of excessive force by defendants by roughly handcuffing, grabbing, and detaining Plaintiff constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the

United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

75. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

Assault

76. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

77. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, that such acts caused apprehension of such contact in the Plaintiff.

78. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

79. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

80. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

81. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Battery

82. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

83. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner grabbed and pinned Plaintiff with his arms behind his head and roughly handcuffed Plaintiff, effecting an arrest of Plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery.

84. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

85. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

86. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

87. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

88. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

89. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

90. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Failure to Intervene

91. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

92. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

93. Defendants failed to intervene to prevent the unlawful conduct described herein.

94. As a result of the foregoing, Plaintiff's suffered several injuries to his upper arms and wrists, his liberty was restricted for an extended period of time, and he was humiliated and subject to other physical constraints.

95. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

96. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

97. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

98. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Violation of Fourth And Fourteenth Amendment Rights: Denial of Right to Fair Trial/Due Process

99. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

100. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

101. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

102. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

103. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

104. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

105. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

106. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

107. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to: economic, emotional and psychological injuries.

TENTH CAUSE OF ACTION

Malicious Prosecution

108. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

109. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.

110. Defendants commenced and continued a criminal proceeding against Plaintiff.

111. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which they were prosecuted.

112. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

ELEVENTH CAUSE OF ACTION

Individual Defendant Officer's Violation of Plaintiff's AC 8-802 Rights

113. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

114. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

115. The acts of Defendant Officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

116. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing his detention for approximately 48 hours in total and using excessive force in the course of unlawfully arresting plaintiff.

117. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

TWELFTH CAUSE OF ACTION**Individual Defendant Officer's Failure to Intervene in Violation
of Plaintiff's AC 8-802 Rights**

118. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

119. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

120. Defendant Officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

121. The Defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's AC 8-802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

122. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

123. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

THIRTEENTH CAUSE OF ACTION**City-Employer's Liability for Defendant Officer's Violation of
Plaintiff's AC 8-802 Rights**

126. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

127. Defendant Officers are "covered individuals" as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.

128. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

129. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

130. The acts of Defendant Officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

131. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing his detention for approximately 48 hours in total and using excessive force in the course of unlawfully arresting plaintiff..

132. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

FOURTEENTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights

133. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

134. Defendant Officers are “covered individuals” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.

135. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

136. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

137. Defendant Officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

138. The Defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's AC 8 – 802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

139. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

140. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

FIFTEENTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

141. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

142. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of her person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

143. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered physical, economic and emotional injuries, as well as a deprivation of liberty.

144. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

145. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

146. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff NOEL RUEMMELEY demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiff recover the cost of the suit herein, including reasonable

attorney's fees pursuant to 42 U.S.C. § 1988 and 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 801 *et seq.*.

Dated: New York, New York
June 16, 2022

By: Cary London
Cary London, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
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15th Floor
New York, New York 10004
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TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
NYPD DETECTIVE EMMANUEL FERNANDEZ, Shield No. 4003, Patrol Borough
Manhattan North, 151 West 100th St, New York, NY 10025

ATTORNEY'S VERIFICATION

CARY LONDON, an attorney duly admitted to practice before the Courts of the

State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
June 16, 2022

Cary London
CARY LONDON